

		summary and worksheet “contained an error in omitting deposition costs at line 4 due to computer error.” (ROA 310 [Not. of Errata at p. 1].) CCP section 473, subdivision (b), provides, in relevant part, that the court may, “upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or <i>other proceeding</i> taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b), emphasis added.) The application “shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (<i>Id.</i>) “The law favors judgments based on the merits, not procedural missteps”; thus, “doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it.” (<i>Lasalle v. Vogel</i> (2019) 36 Cal.App.5th 127, 134.) The Court finds it is in the interests of justice to grant relief, here, because: Plaintiff’s counsel has provided a reasonable explanation for the circumstances that caused the error; the motion was made within a reasonable time; the total costs claimed have not changed (and the error appears to be largely clerical); and, Defendant will not be unduly prejudiced because it will have a full and fair opportunity to challenge the corrected memorandum. Plaintiff shall give notice of the ruling.
3.	2025-1488244 Oozoonian vs. Innovative Service Technology Management Services, Inc.	Plaintiff Armen Oozoonian’s motion to set aside the dismissal entered on February 19, 2026, is granted. Code of Civil Procedure section 473, subdivision (b) includes a mandatory relief or “attorney fault” provision, which requires the court to vacate a dismissal or order, if a motion or application for relief from the dismissal or order (1) is filed “no more than six months after entry of judgment,” (2) is “in proper form,” and (3) is accompanied by an attorney’s affidavit of fault, unless the court finds that the default judgment or dismissal was not caused by the attorney’s mistake, inadvertence, surprise, or neglect. (<i>Dollase v. Wanu Water, Inc.</i> (2023) 93 Cal.App.5th 1315, 1322-1323.) Additionally, the policy of the law is to have every litigated case tried on its merits and any doubts in applying section 473 must be resolved in favor of the party seeking relief from dismissal. (<i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 696.)

		Plaintiff timely filed the instant motion on February 26, 2026, one week after the February 19, 2026, Dismissal (ROA 19) was entered. (<i>Younessi v. Woolf</i> (2016) 244 Cal.App.4th 1137, 1147 [a motion to set aside default or dismissal based on attorney fault “is timely if filed within six months of the entry of the default judgment or dismissal”].) Plaintiff’s counsel, Shaunt Oozoonian, declares that he missed the Case Management Conference and the hearing for the Order to Show Cause re: Dismissal (for Failure to Appear at the Case Management Conference) due to calendaring errors and neglect for failing to check the Register of Actions. (Shaunt Oozoonian Decl. ¶¶ 13-19.) Plaintiff’s counsel’s mistake, inadvertence, surprise and/or neglect led to the dismissal of the instant action. There is no contention or evidence that Plaintiff’s failure to abide by the Court’s orders and rules was not Attorney Oozoonian’s fault and no prejudice has been argued or identified. The dismissal ordered on February 19, 2026, is set aside.
4.	2024-1420864 Goldsworthy vs. FCA US, LLC	Plaintiff Gaelyn Goldsworthy’s motion for attorneys’ fees is granted. Plaintiff is awarded \$162,491.08 in reasonable attorneys’ fees, costs, and expenses, against Defendant FCA US, LLC. <u>Merits</u> Civil Code section 1794, subdivision (d) provides: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Defendant does not dispute that Plaintiff is the prevailing party under the Song-Beverly Act, as reflected in their settlement agreement. Plaintiff’s right to seek an award of attorneys’ fees and costs is a term of Defendant’s Offer to Compromise, which was accepted. (See ROA 166.) To recover attorney’s fees, a prevailing party bears the burden of demonstrating that the fees were: (1) allowable; (2) reasonably necessary to the conduct of the litigation; and (3) reasonable in amount. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 998.) The lodestar method is applicable to calculating attorney’s fees under the Song-Beverly Consumer Warranty Act. (<i>Id.</i> at p. 997.) An experienced trial judge is the best judge of the value of professional services rendered in his or her court. (<i>Ibid.</i>) The trial court’s analysis “begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and